

Chapter 1

MUNICIPAL ORDINANCES

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Sec. 1-1. Repeal of Existing Ordinances.

The ordinances contained in this Chapter and the chapters following shall be known as the "Revised Ordinances of the City of Moscow, Idaho," and so far as their provisions are the same in effect as those of previously existing ordinances, they shall be construed as continuations thereof; but subject to the limitations and provisions of the next sections, all ordinances and resolutions of the City of Moscow, Idaho, heretofore in force (except such as are of a private, local or temporary nature, including franchises, grants, dedications and special levies for local assessments), are hereby repealed.

Sec. 1-2. Effect of Repealing Ordinances.

The repeal of ordinances as provided herein shall not affect any right which has accrued, any duty imposed, any penalty incurred, nor any action or proceeding as commenced under or by virtue of the ordinances repealed, nor the tenure of office of any person holding office at the time when they take effect; nor shall the repeal of any ordinance thereby have the effect of reviving any ordinance theretofore repealed or superseded.

Sec. 1-3. Rules for Construction of Ordinances and Amendments.

In the construction of the Moscow City Code and all ordinances amendatory thereof or supplementary thereto, the following rules shall be observed unless such

construction would be inconsistent with the manifest intent of the legislative body or repugnant to the context of the ordinance.

- A. Intent to Defraud. Whenever, by any of the provisions of this Code, an intent to defraud is required in order to constitute an offense, it is sufficient if an intent appears to defraud any person, association or body politic or any combination of persons.
- B. Liability of Employers and Agents. When the provisions of an ordinance prohibit the commission or omission of an act, not only the person actually doing the prohibited thing or omitting the directed act, but also the employer and all other persons concerned or aiding or abetting the person shall be guilty of the offense described and liable to the penalty as set forth in this Code.
- C. Title of Sections and Subsections:
 1. The title of any section or subsection of these ordinances shall be deemed to in nowise restrict or qualify or to limit the effect of the provisions set forth and contained in such section or subsection.
 2. State Law references and City Resolution and Ordinance numbers and dates are included for reference only and shall be deemed to in nowise restrict or qualify or to limit the effect of the provisions set forth and contained in such section or subsection.
 3. Where the title of an administrative officer is used in this Code, such shall include all authorized employees, agents, designees, and representatives of such officer or department head.
- D. Constitutionality; Effect of. Should any section, subsection or portion of this Code, or of any ordinances which may be hereafter passed, approved and published as required by law, be declared by any court of competent jurisdiction to be unconstitutional or void, such adjudication shall in no way affect the remaining portion of such section, subsection, part or portion of the Code.

E. Definitions.

The definitions contained herein shall have the following meanings, throughout this Code, unless otherwise more specifically defined in a particular chapter, section, or subsection:

The singular number includes the plural.

Words used in the present include the future.

Words used in the masculine gender comprehend, as well, the feminine and neuter.

The word "shall" is mandatory and "may" is permissive.

Words prohibiting anything being done except in accordance with a license or permit or authority from a board or officer shall be construed as giving such board or officer power to license or permit or authorize such thing to be done.

1. *City*. The City shall mean the City of Moscow, Idaho, as set forth at Title 1, Chapter 2 of this Code, and/or its officers, employees, and duly authorized representatives.

2. *Clerk*. The Clerk shall mean the Clerk of the City of Moscow, Idaho, as set forth at Title 2, Chapter 5 of this Code.

3. *Code*. The Code or this Code shall mean the Revised Ordinances of the City of Moscow, Idaho, sometimes commonly referred to as the Moscow City Code.

4. *Council*. The Council shall mean the Council of the City of Moscow, Idaho, as set forth at Title 2, Chapter 2 of this Code.

5. *Day, Month, Quarter, Year*. The word "day" shall be any twenty-four (24) hour period from midnight to midnight; and the word "month" shall mean a calendar month unless otherwise expressed; and the word "quarter" means any three (3) month period, ending with the last day of March, June, September and December; the word "year" shall mean any one (1) calendar year. When any

time is specified in this Code, it shall mean standard time as distinguished from solar time, and the words "midnight" or "noon" shall be taken to be midnight or noon standard time.

6. *Idaho Code*. The Idaho Code or State law shall mean the Idaho Code containing the General Laws of Idaho.

7. *Knowingly* imports only a knowledge that the facts existed or exist which bring the act or omission within the provisions of these ordinances; it does not require any knowledge of the unlawfulness of such act or omission.

8. *Land, Real Estate, Real Property* include lands, tenements, hereditaments, water rights, possessory rights and claims.

9. *Neglect, Negligence, Negligent and Negligently* import a want of such attention to the nature or probable consequences of the act or omission as a prudent person ordinarily bestows in acting in his or her own concern.

10. *Oath* includes "affirmation" and the word "swear" includes the word "affirm". Every mode or oral statement under oath or affirmation is embraced in the term "testify" and every written one in the term "depose".

11. *Officer* shall include officers and boards in charge of departments and the members of such boards, and such references as to the Clerk or City Treasurer, as the case may be applicable.

12. *Official Time*. Whenever certain hours are named herein, they shall mean Pacific Standard Time or Daylight Saving Time as may be in current use in the City.

13. *Owner* applied to a building or land shall include any part owner, joint owner, tenant in common, joint tenant or lessee of the whole or a part of such building or land.

14. *Person* includes an individual, group of individuals, organization, proprietorship, joint venture, partnership, trust, business trust, syndicate, association, joint stock

company, corporation, cooperative, and bodies politic and corporate.

15. *Personal Property* includes money, goods, chattels, things in action, evidences of debt and general intangibles as defined in the Uniform Commercial Code, Idaho Code Title 28, as amended.

16. *Property* includes both real and personal property.

17. *Public Thoroughfare* includes streets, alleys, lanes, courts, boulevards, public ways, public squares, public places and sidewalks.

18. *Signature* includes any name, mark or sign written with the intent to authenticate any instrument of writing.

19. *Tenant or Occupant*, applied to a building or land, shall include any person who occupies the whole or any part of such building or land whether alone or with others.

20. *Willfully*, when applied to the intent with which an act is done or omitted, implies simply a purpose or willingness to commit the act or make the omission referred to. It does not require any intent to violate law or to injure another or to acquire an advantage.

21. *Writing* includes printing, typewriting or any other intentional reduction to tangible form.

(Ord. 2009-04, 02/02/2009; 2021-09, 07/19/2021)